Claim to an Employment Tribunal — Form ET1

You must complete all questions marked with an asterisk (*). Office use only — Tribunal case number: **1304562/2026**. Date received: 18 March 2026.

1 Your details

1.1 Title*	Mr
1.2 First name(s)*	Raymond Alexander
1.3 Surname*	Whitcombe
1.4 Date of birth*	23 / 02 / 1971
1.5 Address*	14 Beechwood Rise, Solihull, West Midlands, B91 3PJ
1.6 Contact number	07712 660145
1.7 Email	r.whitcombe@btinternet.com
1.8 How would you prefer to be contacted?*	Email

2 Respondent's details

2.1 Name of respondent*	Sutherland Logistics Limited
2.2 Address*	Sutherland House, Calder Park, Wakefield, WF2 7AW
2.3 Place you worked (if different)	Coleshill Distribution Centre, Hams Hall, Coleshill, B46 1AL
2.4 Did Acas issue an early conciliation certificate?*	Yes
2.5 Acas EC certificate number*	R123456/26/45

3 Your employment

3.1 Employment start date*	3 September 2014
3.2 Employment end date*	16 January 2026
3.3 Is your employment continuing?*	No
3.4 Job title*	Regional Depot Manager (Midlands)
3.5 Hours per week	40
3.6 Gross pay (annual)	£78,500
3.7 Net pay (monthly)	£4,585
3.8 Notice / pension benefits	3 months' notice; auto-enrolment pension (6% employer)

4 Type of claim*

I am making a claim for (tick all that apply):

[X] I was unfairly dismissed (including constructive dismissal).

[X] I was automatically unfairly dismissed because I made a protected disclosure (whistleblowing).

[X] I was subjected to a detriment for making a protected disclosure.

[ ] I am owed notice pay / holiday pay / arrears of pay / other payments.

5 Background and details of your claim*

5.1 I was employed by the Respondent for over eleven years, latterly as Regional Depot Manager for the Midlands, based at the Coleshill distribution centre, where I managed around 60 staff and a fleet of HGVs.

5.2 In September 2025 I became aware that vehicle maintenance and tachograph records at the Coleshill site were being inaccurately recorded, with several vehicles being presented as roadworthy when defects had not been signed off. On 9

September 2025 I raised these concerns in writing with the Operations Director, Mr Mark Tennant, because I reasonably believed the practice breached the Respondent's legal obligations and endangered the health and safety of drivers and the public. I believe this was a protected disclosure.

5.3 Shortly afterwards the atmosphere towards me changed. On 1 December 2025 I was told that my role was 'at risk' of redundancy in a reorganisation. I was placed in a pool of two with a less experienced colleague, Mr K Driscoll, and after a scoring exercise that I say was manipulated, I was selected for redundancy.

5.4 I was dismissed on 16 January 2026, ostensibly by reason of redundancy. I do not accept that there was a genuine redundancy situation affecting my role, or that the selection was fair. I believe the real reason, or the principal reason, for my dismissal was that I had made the protected disclosure described above.

5.5 I therefore claim that I was automatically unfairly dismissed contrary to section 103A of the Employment Rights Act 1996, alternatively that I was ordinarily unfairly dismissed contrary to section 98 of that Act, and that I was subjected to detriments contrary to section 47B of that Act. The detriments included exclusion from management meetings from October 2025, removal of responsibilities, and the manner of my selection.

5.6 My losses are continuing. Full particulars will be provided in a Schedule of Loss, but in summary I claim compensation for loss of earnings, loss of pension and benefits, injury to feelings, and an uplift for failure to follow a fair procedure.

6 What compensation or remedy are you seeking?*

If successful, I am seeking compensation. I am not seeking reinstatement or re-engagement. I estimate my total losses at approximately £163,369, to be particularised in a Schedule of Loss.

7 Your representative

7.1 Name	Ms Eleanor Bartlett
7.2 Organisation	Ashworth Quinn LLP
7.3 Address	8 Temple Row, Birmingham, B2 5HG
7.4 Reference	EB/RW/2261
7.5 Email	eleanor.bartlett@ashworthquinn.com

Signature: R A Whitcombe (electronic) Date: 18 March 2026